IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Collective Bargaining Agreement set out in the Schedule which was registered in terms of section 79 of the Act.

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE AGRICULTURAL INDUSTRY:

COLLECTIVE BARGAINING AGREEMENT: AGRICULTURE INDUSTRY (COUNCIL DUES)

Made and entered in accordance with the provisions of the Labour Act [*Chapter 28:01*] between the Zimbabwe Agriculture Employers' Organisation (ZAEO), Zimbabwe Farmers' Union (ZFU), Zimbabwe Commercial Farmers' Union (ZCFU), Commercial Farmers' Union (CFU), Zimbabwe Tea Growers' Association (ZTGA), Zimbabwe Tobacco Association (ZTA), Timber Producers' Association (TPA), Zimbabwe Sugarcane Employers Organisation (ZSEO), Zimbabwe Kapenta Producers Association (ZKPA), Zimbabwe Indigenous Agriculture Association (ZIAA), Horticulture Development Council (HDC), and Agro and Horticulture employer representatives (hereinafter referred to as "the employer parties"), of the one part, and the General Agriculture and Plantation Workers' Union of Zimbabwe (GAPWUZ), Horticulture, General Agriculture and Plantation Workers' Union of Zimbabwe (HGAPWUZ) and Kapenta Workers Union of Zimbabwe (KWUZ) (hereinafter referred to as "the employee parties"), of the other part, being parties to the National Employment Council for the Agriculture Industry in Zimbabwe to further amend the Collective Bargaining Agreement published in Statutory Instrument 41 of 2022.

This further agreement shall be deemed to have come into operation on the 1st of September, 2023.

The employer parties and the employee parties have agreed on the following:

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The awarded Council dues for all sectors in the agricultural industry in Zimbabwe as provided for in Statutory Instrument 41 of 2022 shall be as follows:

1. For the purpose of meeting expenses of the Council, every Employer shall, with effect from 1st September, 2023, deduct from the basic monthly wage/salary of each of his/her permanent, seasonal, casual, and fixed term contract employees, 1.5% per month and remit such deductions to NEC Agriculture in the currency of the wage paid.
2. To the amount deducted and remitted in terms of clause one, the employer shall also contribute 1.5% of the total basic monthly wages/salaries of all of his/her permanent, seasonal, casual and fixed-term contract employees per month in the currency of the wage paid. Therefore, the total monthly contribution of employers and employees due to NEC Agriculture shall be 3% of the basic monthly wages/salaries of all permanent, seasonal, casual, and fixed-term contract employees. The total amount shall be remitted to the Chief Executive Officer/Secretary of the Council in full, not later than the 10th day following the month of deduction, together with the declaration form, and any other document prescribed by the Council from time to time.
3. The employer is obliged to declare permanent, seasonal, casual, and fixed-term contract employees that are currently employed as defined in the collective bargaining agreement published in Statutory Instrument 41 of 2022 and its amendments.
4. Interest at a rate of 10% per annum shall be imposed on any outstanding dues. The interest will accrue daily from the due date of payment to the date of full payment of the outstanding dues and payable interest.

Signed at Harare this 22nd of September, 2023.

The agreement is binding on all organisations within the agricultural industry.

T. NYIRENDA,
Chairperson—Employers' Representative.

F. ZONDO,
Vice Chairperson—Employees' Representative.

D. MADYAUSIKU,
Chief Executive Officer—NEC Agriculture.